15 Parcel-Based Data and Registration Forms: Issues and Improvements in Oromia

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1. Introduction

Oromia has a total area of about 35.4 million hectares, covering about 32% of the country's area. In the region, population has been increasing through time, with little improvement of agricultural production and development in other economic sectors that would balance the growing rural demographic dynamic, particularly of labor force. The region is subdivided into 200 Districts (Weredas) and more than 6000 Kebeles (the smallest administrative unit).

According to the Central Agricultural Census Commission, the number agricultural rural households of Oromia was 4,421,408 in July 2003. If we take the average number of parcels per household as four, this means that about 17,000,000 - 20,000,000 parcels have to be measured and registered in Oromia.

Initially a land holding survey and registration was conducted in 166 Weredas, excluding pastoral areas, by training experts and technicians at Wereda level. 5000 Kebele land administration and use committees were established and 25,000 committee members were trained in land survey and registration. To date, survey and registration for about 2.5 million rural households have been completed.

According to the Oromia Rural Land Administration and Use Policy study of 2001, the existence of a relatively high number of plots/parcels owned per household is basically for diversification of crops to exploit different micro-environments, to avoid risk of complete crop failure, and to get a smooth supply of subsistence food. Farmers considered land fragmentation as their livelihood strategy in the prevailing environmental constraints. The study showed that the number of households with more than three plots/parcels was high in Oromia.

Different parcel-based data types are collected using Form 1 at the field level and further summarized in Form 2 at the office level. The summarized data from Form 2 is transferred to the registry book (Form 3). Then some summarized data from the registry book and some data from Form 2 are transferred to the book of holding (certificate).

2. Objectives

The major objectives of this paper are:

- to review the type of parcel and household data and forms used for data registration and recording in Oromia,
- to propose the relevant parcel and household data types to be collected on land holding,

- to propose appropriate forms for parcel and household data registration and recording.

3. Status of Parcel-Based and Household Data Types and Recording Forms

Land registration and cadastre usually complement each other. Land registration puts the accent on the subject-right relation, whereas the cadastre puts the accent on the right-object relation.

A piece of land's (parcel) relation to a private or a public/community is defined or restricted by existing law. This legal land object is normally described by boundaries which demarcate where a right or a restriction is reflected.

Land registration answers the questions about the holding such as "who?" and "how?" whereas the cadastre/survey answers the questions "where?" and "how much?" "and how many" area and the number of parcels. Because land registration and cadastre complement each other, the terms "land recording" or "land records" are usually used to indicate these two components together as a whole.

3.1 Data Types and Different Registration Forms and their Purpose

Generally, a land parcel can be defined as a continuous area of land within which unique and homogenous interests are recognized. That means if the cadastre is for a legal purpose, it reflects homogeneity in legal interest and if it is for land-use purpose, it reflects homogeneity in land use.

In the case of Oromia, the purpose of parcel-based land registration is to identify the legal entity of the holder of the parcel regardless of the different land uses of the parcels. Different data types are collected based on parcels and households in the region.

3.1.1 Parcel-based and Household Data Types and Their Purposes

The data types to be collected on parcels and households are decided at the regional level and included in the directive. Most parcel and household data are registered at the field level. The types of parcel and household data and their purposes are discussed as follows:

a) Data on General information

- Unique identification number/code of each District (Wereda), which is given for each Wereda in the region (the first Wereda starts with 001 identification number/code and continues),
- Unique identification number/code of each Kebele (KA) in the Wereda (the first Kebele starts with 01 identification number/code within its respective Wereda),
- Identification and demarcation of Kebele boundary (existing boundary),

- Identification and demarcation of communal lands.

b) Individual Parcel and Household Data Types

- Unique identification number/code of each parcel which is given to each parcel in a Kebele (the first parcel in a Kebele starts with 0001 identification number/code)
- Location of the parcel (Zone, Wereda, Kebele, sub-Kebele and specific place of parcels). There is no need to repeat names of zones and Weredas for each plot while working in the same area,
- Date of registration,
- Name(s), gender and age of holder(s),
- Name and age of spouse/spouses,
- Family of the land holder with description of family member's relation,
- Parcel code,
- Number and area of parcels (using traditional measurement and in hectare),
- Land value (farmers' perception),
- Holding type (Individual farmer, Investor, Communal, Social Institution, Other),
- Use type of parcels (Cultivated, Forest, Fruit and Vegetables, Homestead, Grazing, other),
- Identification of neighboring parcels from four directions (East, West, North and South),
- How and when each parcel of land was held is registered at field level; d upon completion of parcel registration, a card is given to the individual, which indicates that the land registration for the individual has been completed. The information on the card includes: the serial number, Wereda, Kebele, name of land holder, number of parcels registered, codes of parcels, registration date, name of recorder and a notice to the a land holder that he has to bring with him the card to claim for a book of holding.
- Accordingly the land holding data of each individual is compiled and approved by the local community at the Kebele or sub-Kebele or sub-group level by calling an assembly. The validated data is officially sent to Wereda office to be processed and recorded.

c) Types of Parcel/Household Data Registered in Registry Book (Form 3)

The summary of parcel/household data is compiled and directly transferred to the registry book at the Wereda office level. All information on the landholder is recorded in a single line of a registry book. There are some data on parcels such as parcel codes and

parcel neighbor, which cannot be added up to enter on a single line of registry book when the number of parcels are more than an expected. In such a case, the only means is to direct the users to the source documents for further reference.

In addition to the compiled summary of field data, serial number of the holding book (Certificate), date of issue of certificate, name and signature of registrar, name and signature of holder and also name of the person to whom the holding is transferred if change/transfer of holding appears, area in hectare of holding transferred and date of holding transfer are registered in the registry book along with basic parcel data.

d) Types of Parcel/Household Data Registered in Book of Holding (Certificate)

Basically some summarized parcel data from the registry book and general information about the holder are registered in the book of holding. The type of data registered in the book of holding are the following:

- Name of holder,
- Name/s of spouse/spouses,
- Family members' name and relation,
- Address of land holder (Region, Zone, Wereda, Kebele, sub-Kebele),
- ID number of land holder,
- Landholding data (parcel code, land use, area, productivity, how holding is transferred, specific location of parcels and neighboring parcels are registered carefully. In addition, the photograph of the landholder is attached and approved by authorized body.

3.1.2 Purposes of General and Parcel-based/Household Data Types

a) Data on General Information

The purpose of the general information is to identify easily the administrative and common property boundaries while registering land. This creates a smooth relation among land users and minimize boundary dispute may be arise. For the general information there is no need to use standard formats because it can be recorded on ordinary plain paper. In such a case each Wereda in the region and each Kebele in the respective Wereda will be assigned a unique identification number/code.

For quick retrieval of data and planning purposes, the identification and demarcation of administrative and common-resource boundaries is necessary before parcel registration. This will serve to minimize boundary disputes.

b) Parcel-based Data Types

The purposes of a land holder's and family members' data are:

- To know the family status of the land holder which will be a primary data for rural population density in the region,
- To identify the holder of each parcel of land.

The purposes of collecting parcel-based data at field level are:

- To identify each parcel with unique a identification number/code that can be used in a digital database,
- To identify the number and area of parcels of each household,
- To know the condition of each parcel (land value, holding type, land use, neighbor, etc.).

The registry book is a record book of land certification, which gives basic information and is arranged systematically by Kebele and keeping the serial number of the land holders for easy reference. The purposes of data in the registry book are:

- To record data on land holding and landholders,
- To prevent the parcels data from missing and being dispersed everywhere.

The purposes of data in the holding book (certificate) are:

- To enhance tenure security of land holders;
- To provide a legal document which identifies land, by use and users;
- To identify squatters/ illegal land grabbers.

3.1.3 Users of the Parcel Data

Any land holder (private farmer, investor, GO and NGO, social organization, etc.) uses parcel data for different purposes, such as land rental agreement, compensation, and rural development planning, etc. Parcel data are essential for tax collecting and credit agencies, and researchers of land tenure issues.

3.2 Forms for and Purposes of Data Registration and Recording

Form 1: is used mainly for collection of field data on parcels and land holding households. The purpose of this form is to get standardized data on land holding throughout the region. A major shortcoming of this form is that it is time-consuming and requires a minimum of elementary education personnel to fill the form.

Form 2: This form is used for field data compilation and organization. It is a version copy of Form 1. The purpose of this form is to summarize the land holding data of an individual into one form and systematically file for future reference. Meanwhile, the error made during field data collection will be corrected on this form. There is no difficulty in filling this form, but most users of the form complain that it repeats Form 1.

Registry book (Form 3): The registry book is a basic record of parcels and land holding household data which is kept at the Wereda ARD Office. The purpose of this book is to establish a database on land holding and landholders. The parcel data of any landholder

can be easily referred and can changed into digital form, once the important land holding data are made readily available in this book.

Book of holding (certificate): It is a basic legal document which gives guarantee to the individual and group property rights and obligations to give tenure security.

4. Opportunities, Issues and Constraints of Data Types and Registration Forms

4.1 Opportunities

- The "Oromia Rural Land Use and Administration Policy and Proclamation have been adopted at the 5th regular Session of the Oromia Council. Consequently, the regulation and implementation guideline where endorsed by the concerned organs in the successive years. This is a good opportunity for smooth implementation of the land administration system in the region.
- The National Regional Government of Oromia is committed to implement a land administration system in the region, which is a good opportunity for parcels-based land survey and registration.
- Participation of the local community and Kebele Land Administration and Use Committees in parcels' area measurement and registration is a good opportunity to accelerate rural land registration.
- The ongoing Ethiopia - Strengthening Land Tenure and Administration Program (ELTAP), which will be implemented in six focus areas of our region by ARD, INC Ethiopia Branch is a good opportunity to scale up rural land survey and registration.

4.2 Issues and Constraints

Rural land holding in Oromia is highly fragmented due to land productivity variations. If the number of plots per household is 4-5 parcels on average it requires collecting and recording different parcel-based data for about 20 million parcels. Beside the description of land holding data, some demographic data for about four million households has to be collected and recorded. To collect and record such huge data requires a huge budget, human resource and time.

4.2.1 Constraints of Registering the Name and Family Relation of a Land Holder

Registration of the name and family relation of a landholder is time consuming particularly during field data collection.

4.2.2 Issues Related to Parcel Data Types

Parcel code data – If a land holder has many parcels in different locations, these parcels' codes are supposed to be registered. This requires additional forms, which increases cost and consumes time while registering in Form 1 at field level and as well when

summarizing in Form 2. Each parcel and household data have to be registered in a single line when transferring into the registry book. As the parcel code data could not be summarized it is difficult to list down all the codes in the registry book. On the other hand, the parcel codes data can be easily listed in a book of holding similar to Form 1 and Form 2, but requires cost and time.

Neighboring data – Neighboring parcels data also could not be summarized in a registry book as a single line of the book is not enough to accommodate the data. Cost and time are also other factors.

Change and transfer of holding – Change and transfer of holding are registered in the registry book only once. But if the same land holder changes and transfers his/her holding, there is no space to record the change in the book. This necessitates a change of the holding book or certificate.

4.2.3 Issues Related to Different Data Registration Forms

Form 1 – This form could not accommodate data for more than 3 parcels, whereas in practice farmers have 15-20 parcels in different places. In such a case, 5-7 forms are required for one land holder. As parcel data registration is not completed at one time for an individual holder, the already registered and non-registered data could be mixed up, misplaced or lost. This creates summarizing the data on the holdings of a farmer difficult and delays timely issuance of a certificate.

About half (1/2) a page of Form 1 is used to fill demographic data of a land holder which limits the space for data on the land holding. Since personal information of a land holder and his family is the same for all parcels, it would not be repeated for every parcel.

Form 2 – This form is a summary form of Form 1. The problem of space limitation for parcel data registration seems to be solved by transferring the details of family name and family relation to the backside of the form. As the feedback from the users of Form 2 suggests, the form can be used as both a field sheet and a summary form because it is another version of Form 1.

Registry Book (Form 3) – The existing registry book used in Oromia cannot accommodate the detail of some parcel data, such as parcel code and neighboring parcels.

The column for change and transfer of landholding cannot serve for more than one change or transfer. So this column was incorporated unnecessarily.

The registry book has many pages that accommodate data about 10,000 households. The data recording in this book is usually carried out only by one person. Data recording in such a condition can create a problem of timely data recording and issuance of a certificate.

Book of holding (certificate) - The same as the registry book, but some details are unnecessary. Recording detailed information in the book of holding requires more space and additional printing cost and time. In addition, the name and family relation of a land holder must be recorded in a separate document.

5. Recommendations

- The demographic information, particularly the name and family relation of a land holder have to be collected in a different form separate from parcel or land holding data,

- It is not found necessary to record all parcel data in the registry book and book of holding (certificate),

- Important details must be recorded only in the field and summary form,

- As registration of neighboring data is time-consuming and does not add much value it is enough and better if only the center coordinate of each parcel are taken by GPS reading,

- In the case of several parcels of a land holder, there are more parcel codes to be registered. As stated above it may be difficult to register all parcel codes in a registry and book of holding. But all the parcel codes may be found necessary for future data digitization. Therefore, the minute details of the parcel must be omitted from the registry book and book of holding but properly recorded and kept separately by using appropriate forms,

- The column for change and transfer of a holding in the registry book has to be omitted to reduce the volume of the book to a manageable size. The issue of change and transfer of holding must be treated separately in a different book prepared for this purpose only.

- The issues of family name and family relation in Form 1 and Form 2 have to be treated in a separate form and at a different time. For simplicity of parcel data registration and recording, the existing parcel data registration and summary forms (Form 1 and Form 2) have to be modified by combining them together to make it accommodate all parcel data of a land holder on a single page as much as possible. This modified form can serve as a field parcel data registration sheet and as a parcel data summary sheet,

- The registry book has to be modified to a manageable size by omitting irrelevant data from the book. On other hand a sufficient number of copies of the registry book must be supplied in order save time while recording the data,

- It is not necessary to record detailed parcel and family data in the certificate. Therefore, only the summarized and key details on landholding and a landholder

must be registered. This will minimize the page of the holding book and make it easy to register important parcel data. Minimizing the type of data and page number will also minimize cost and time.

- Field data registration and summary forms, the Registry Book and Book of Holding have to be modified as recommended under Annex 2.

ANNEXES: Existing and Recommended Forms and Record Books

Annex 1: Existing Forms and Record Books

Form 1 :Field data collection form on land holding ***No._____***

Zone_____ Kebele _____ Specific locality _____ Wereda _____ Sub-Kebele _____ Date_____

1. **Personal Information:** Full name of landholder _____	Gender ____	Age ____		
Name of spouse/spouses _____	Age ____	Name and family relation: Name _____	Gender ____	Age ____ Relation ____

2. Landholding data in detail

Parcel Code	Number and area of parcels			Land value	Holding type	Land use
	Number	Area				
		Kartii	Hectare			

Neighboring Land holders			
East	West	North	South

3. How holding was accessed _____ Year of Accusation _____
   Measured by _____, _____, _____, _____, _____,
   Registered by: Name _____ Signature _____ Date _____

Form 2: Field Landholding Data Compilation Form **No._____**

1. Personal Information:

Full name of landholder _____ Gender _____ Age _____

Name of spouse/spouses _____ Age _____

Number of family members:

Male _____ Female _____ Total_____

2. Landholding data in detail

SN	Parcel Code	Number and area of parcels			Land value	Holding type	Land Use
		Number	Area				
			Kartii	Hectare			
Total							

Neighboring land holders

SN	East	West	North	South
Total				

Form 3: Registry Book of Landholding **page------**

Wereda_____ Year _____ Book No._____

SN	Parcel Code	No. & area of parcels		Name of holder	Name of Spouse/Spouses	No. of family members			Kebele	Sub-Kebele	Land value	Type of land holding	How and when holding was accessed		Land use	Neighboring parcels				Certificate no.	Date certificate issued	Name and Signature of Registrar	Name and Signature of holder	Change and transfer of holding		
		No.	Area (hectare)			Male	Female	Total					How accessed	Year		East	West	North	South					Name/To whom the holding is transferred	Area (ha)	Date
1	2	3	4	5	6	7	8	9	10	11	12	13	14	15	16	17	18	19	20	21	22	23	24	25	26	27

NB: This registry book is filled after land holding survey and registration have been completed. The number and code of the parcels are registered in the book consecutively and carefully. When registration of one Kebele is completed or to start registration of the next Kebele, one line has to be skipped.

Content of Landholding Certificate

	No. 0000000 **National Regional State of Oromia** **Agricultural and Rural Development Bureau of Oromia** **CERTIFICATE OF RURAL LANDHOLDING**
Front cover inside page (blank) **0**	Serial No. _____ **1**

Content of Landholding Certificate

1. Name and Address of Landholder

1.1 Name of Landholder

Full name	Gender	Age
_____	_____	_____

1.2 Spouse/Spouses

Full name	Gender	Age
a) _____	____	____
b) _____	____	____
c) _____	____	____
d) _____	____	____

1.3 Address of Landholder

Region _____ Zone _____ Wereda _____

Kebele _____ Sub-Kebele _____

ID. Number of Landholder _____

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1.4 Family Members

Full name	Gender	Age	Relation
a) _____	____	____	_____
b) _____	____	____	_____
c) _____	____	____	_____
d) _____	____	____	_____
e) _____	____	____	_____
f) _____	____	____	_____
g) _____	____	____	_____
h) _____	____	____	_____
i) _____	____	____	_____
j) _____	____	____	_____
k) _____	____	____	_____
l) _____	____	____	_____

3

2. First Level of Certificate of Landholding

2.1 Description of Landholding

No.	Parcel code	Land use	Land size (ha)	Land value	How parcel was accessed	Location of holding	Neighbouring land holders			
							East	West	North	South
Total										

4 5

2.2 The landholding mentioned under no. 2.1 is hereby certified to be used by the landholder mentioned under no. 1.1 through this first level of certificate of holding.

2.3 Approved by

Name: _____

Position: _____

Signature: _____

Date: _____

Stamp

Signature of landholder

_____

Date: _____

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Rights and Obligations of a Landholder

Land-use right and tenure security of a landholder accorded by the Oromia Rural Land Use and Administration Proclamation shall be protected without any limitation, while the landholder is obliged to use his holding according to the regulation and directive prepared to implement the Proclamation.

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3. Second Level of Certificate of Landholding

3.1 Description of Landholding

No.	Parcel code	Land use	Land size (ha)	Land value	How parcel was accessed	Location of landholding	Neighbouring Land holders			
							East	West	North	South
Total										

8 **9**

3.2 The landholding mentioned under no. 2.1 is hereby certified to be used by the landholder mentioned under no. 1.1 through this second level of certificate of holding.

3.3 Approved by

Name: _____

Position: _____

Signature: _____

Date: _____

Stamp

Signature of landholder

_____

Date _____

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Notification!

1. This Certificate of landholding has been prepared and given in accordance with the powers vested in ORLNRAA through the Oromia Rural Land Administration and Use Proclamation No. 56/2002.
2. Any land user who fails to fulfill his obligations according to the Oromia Rural Land Administration and Use Proclamation shall be subjected to penalty up to termination of his holding right.
3. Any land user is responsible for the proper management of the land, and any mismanagement affecting the neighboring land users shall be penalized in accordance with the law.
4. Any landholder whose holding right has been terminated in accordance with law is obliged to return the certificate of holding to the Wereda ARD Office within 30 days of being notified to do so.
5. The amendment of the certificate of holding is effected free of charge in the case of consolidation of land effected through exchange of parcels.
6. The 2nd level of certificate of holding will be issued together with a landholding map after the holding has been surveyed using a modern method.

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Annex 2: Recommended Forms and Record Books

Form 1: Demographic Data of Landholder

Zone_____ Kebele _____Locality _____

Wereda _____ Sub-Kebele _____Date_____

Personal Information:

Full name of landholder Gender Age

_____ _____ _____

Name of spouse/spouses Age

1. _____ _____
2. _____ _____
3. _____ _____

Name and family relations of a landholder

No.	Name	Age	Gender	Relation
1.				
2.				
3.				
4.				
5.				
6.				
7.				
8.				
9.				
10.				

Form 2: Field Landholding Data Registration and Compilation Form (Option 1) No. _____

Zone _____ Kebele _____ Locality_____ Wereda _____ Sub-Kebele _____ Date _____

1. Personal Information:

Full name of landholder _____ Gender _____ Age _____

Name of spouse/spouses	Age
1. _____	_____
2. _____	_____
3. _____	_____

Number of family members:

Male _____ Female _____ Total_____

2. Detailed landholding data

SN	Parcel Code	Number and area of parcels			Land value	Holding type	Land use
		Number	Area				
			Kartii	Hectare			
Total							

SN	Neighboring Land holders			
	East	West	North	South
Total				

3. How land was accessed_____ Year holding was acquired _____

Registered by: Name _____ Signature _____ Date: _____

Form 2: Field Landholding Data Registration and Compilation Form (Option 2) No. _____

Zone _____ Kebele _____ Locality_____ Wereda _____ Sub-Kebele _____ Date _____

1. Personal Information:

Full name of landholder _____ Gender _____ Age _____

Name of spouse/spouses Age

1. _____ _____
2. _____ _____
3. _____ _____

Number of family members:

Male _____ Female _____ Total_____

2. Detailed landholding data

SN	Parcel Code	Number and area of parcels			Land value	Holding type	Land use
		Number	Area Kartii	Hectare			
Total							

SN	Neighboring parcels			
	East	West	North	South
Total				

3. How land was accessed_____ Year holding was acquired _____

Registered by: Name _____ Signature _____ Date: _____

Form 3A
page------

Registry Book of Landholding

Wereda_____Year _____ Book No._____

SN	No. &area of parcels		Name of holder	Name of Spouse/Spouses	No. of family members			Kebele	Sub-Kebele	Land value	Type of land holding	How and when holding was accessed		Certificate no.	Date certificate issued	Name and Signature of Registrar	Name and Signature of holder
	No.	Area (hectare)			Male	Female	Total					How accessed	Year				
1	2	3	4	5	6	7	8	9	10	11	12	13	14	15	16	17	18

NB: This registry book is filled after land holding survey and registration have been completed. The number and code of the parcels are registered in the book consecutively and carefully. When registration of one Kebele is completed or to start registration of the next Kebele, one line has to be skipped.

Form 3B

Registry Book for Change and Transfer of Landholding

page-------

Wereda _____ **Year** _____ **Book No.**_____

SN	Holder's name	Kebele	Sub-Kebele	Total no. & area of parcels		No., area & locality of parcels to be transferred			Certificate no.	New holder of transferred land				Name and signature of registrar	Name and signature of initial landholder	Name and signature of new landholder	Date effected
				No.	Area (ha)	No.	Area (ha)	Locality		Name	Wereda	Kebele	Sub-Kebele				
1	2	3	4	5	6	7	8	9	10	11	12	13	14	15	16	17	18

NB: This Registry Book is used whenever there is a consecutive change of holding.

Content of Landholding Certificate **Form 4**

	No. 0000000 **National Regional State of Oromia** **Agricultural and Rural Development Bureau of Oromia** **CERTIFICATE OF RURAL LANDHOLDING**
Front cover inside page (blank) **0**	Serial No. _____ Map Index No._____ **1**

1. Name and Address of Landholder

1.1 Name of Landholder

Full name _____ Gender _____ Age _____

1.2 Spouse/Spouses

Full name Gender Age
a) _____ ____ ____
b) _____ ____ ____
c) _____ ____ ____
d) _____ ____ ____

1.3 Address of Landholder
Region _____ Zone _____ Wereda _____

Kebele _____ Sub-Kebele _____

ID. Number of Landholder _____

2

2. _____ Level of Landholding

2.1 Description of Landholding

SN	No. & area of parcels		Land value	Location of holdings	
	No.	Area (ha)		Locality	Coordinate
Total					

3

2.2 The landholding mentioned under no. 2.1 is hereby certified to be used by the landholder mentioned under no. 1.1 through this first level of certificate of holding.

2.3 Approved by

Name: _____

Position: _____

Signature: _____

Date: _____

Stamp

Signature of landholder

_____

Date: _____

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Rights and Obligations of a Landholder

Land-use right and tenure security of a landholder accorded by the Oromia Rural Land Use and Administration Proclamation shall be protected without any limitation, while the landholder is obliged to use his holding according to the regulation and directive prepared to implement the Proclamation.

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3.2 The landholding mentioned under no. 3.1 is hereby certified to be used by the landholder mentioned under no. 1.1 through this second level of certificate of holding.

3.3 Approved by

Name: _____

Position: _____

Signature: _____

Date: _____

Stamp

Signature of landholder

_____

Date _____

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3. _____ Level of Landholding

3.1 Description of Landholding

SN	No. & area of parcels		Land value	Location of holdings	
	No.	Area (ha)		Locality	Coordinate
Total					

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